

to be treated differently to a professional representative in respect of oral submissions by accompanying persons.

In T 754/08, in the respondent's/patent proprietor's view, since Mr R. was the former patent attorney of the appellant in this case, his submissions would be those of a professional representative. Since he was not authorised to act in the latter function, he should not be allowed to speak during the oral proceedings. The board decided that the conditions set out in the decision G 4/95 were applicable to **any accompanying person**. Therefore, there was no reason to exclude a former European patent attorney as such. Since the conditions were met the board saw no reason not to allow Mr R. to make oral submissions during the oral proceedings.

In T 1687/08, at oral proceedings held before the opposition division on 25 February 2008, the division had refused Mr J permission to speak on behalf of the patent proprietor/appellant. The board found in the case at issue that the requirements for representation by a legal practitioner were fulfilled, i.e. that the letter dated 16 January 2008 represented an authorisation which established that Mr J was entitled to represent the patent proprietor. The board stated that from the minutes of the oral proceedings and the decision under appeal it was apparent that the opposition division had not considered Mr J to be a legal practitioner under Art. 134(8) EPC. Instead, it had treated him as an accompanying person, and therefore applied the requirements set out in decision G 4/95. Since the patent proprietor had requested Mr J's participation in the oral proceedings as a legal practitioner under Art. 134(8) EPC, not as an accompanying person within the meaning of decision G 4/95, the division's decision not to allow him to speak had been taken under the wrong legal provision.

In a communication the board in T 8/13 stated that the request to allow another person who was not a professional representative to make submissions on behalf of the appellant (opponent) during the oral proceedings would not be allowable in view of the conditions set by Art. 134 EPC and having regard to decision G 4/95. Ms. L was neither a representative according to Art. 134 EPC nor was she presented as a technical expert to be heard on a technical question. The personal involvement with the case or her relationship to the appellant also did not qualify Ms. L to have made submissions as an accompanying person in accordance with the conditions set out in G 4/95.

In T 1212/02 the board held that an employee of the opponent's holding could make submissions only as a person accompanying its professional representative and so subject to the conditions set out in G 4/95, even though he worked alongside the professional representative on the opponent's affairs in the holding's patent department.

5.2.4 Inventor as accompanying person

In T 1208/06 the inventor was not identical to the patent proprietor. The board held the opposition division to have acted correctly by categorising the inventor as an "accompanying person" and not as a party to the proceedings within the meaning of Art. 99(3) EPC and by rejecting the proprietor's request.

The board in T.1150/12 agreed to hear the inventor as an accompanying person, if necessary to supplement the professional representative's submissions. It was anyway bound to treat an inventor's submissions or comments just as impartially as it would the naturally one-sided submissions made by the parties' representatives.

5.2.5 Name, qualifications and subject-matter to be specified

Professional representatives must request permission for oral submissions to be made by an accompanying person, stating that person's name and qualifications and specifying the subject-matter of the proposed oral submissions.

In T.1668/14 the board considered that G.4/95 did not deal explicitly with the question of whether an accompanying person may ever be allowed to speak on matters other than those previously notified. However, the fact that the EPO has a discretion to decide that a proposed accompanying person may not be heard at all suggests that such discretion extends also to the nature of the submissions to be permitted. The board therefore judged, in the case in hand, that it fell within the discretion of the EPO to decide whether an accompanying person might be allowed to speak on matters other than those previously notified, and that this discretion was to be exercised taking into account the facts of the particular case and the principles set out in G.4/95. Permission should only be granted where it is clear that it would not unexpectedly disadvantage the opposing party.

Concerning the admissibility of oral presentations by three technical experts, the board in T.2135/08 concluded that none of the three criteria i), ii) and iii) of G.4/95 were met, among other reasons since the requesting party had failed to state -even at the oral proceedings- the qualifications of these three persons and to specify the subject-matter of their proposed oral submissions.

The board in T.302/02 did not allow the expert to make submissions. If an expert were allowed to make submissions on subject-matter not specified in some detail beforehand, the other party or parties would be placed at a disadvantage since they could not prepare themselves properly, and this would be against the spirit and purpose of decision G.4/95 and should only be permitted if none of the parties to the proceedings objects.

In T.2552/11, the board did not permit oral submissions from Mr J. The statement by the appellant (opponent) that Mr. J would "refer to the prior art documents cited by the opponent" was very general, and not sufficient to enable the respondent (patent proprietor) to prepare itself properly.

In T.919/07, where the requests in writing concerning oral submissions by accompanying persons did not indicate what such submissions could contribute to the evidence on the file, the board exercised its discretion by deciding that the accompanying persons should be heard in the event that the board wished to ask them questions.

5.2.6 Oral submissions to be requested sufficiently in advance

Any request should be made sufficiently in advance of the oral proceedings to enable all opposing parties to prepare themselves properly for the proposed submissions.

In T. 334/94 the board emphasised that a party wanting such submissions to be made had to ask permission sufficiently in advance of the oral proceedings to give the other parties time to prepare. The board noted that the Enlarged Board had not defined what "sufficiently in advance" meant, or laid down a deadline for making such requests. In its view, the **deadline of one month** before the proceedings for filing submissions or new sets of claims was a minimum. On that basis, nominating an accompanying expert one week before the proceedings was not acceptable.

In T. 899/97 the appellant (opponent) requested that a technical expert be allowed to speak during the oral proceedings in order to explain the physical phenomena that occurred when a prior art separator was used. Pointing out that the relevant letter from the appellant had reached him only two weeks before the oral proceedings, and referring to G. 4/95 and T. 334/94, the respondent requested that this technical expert be refused permission to speak. The board considered the particular circumstances of the case, i. a. that this technical expert was one of the authors of the test report (R2) filed by the appellant with the statement of grounds, that the board had raised some questions on this specific technical issue in the annex to the summons to oral proceedings, and that these technical issues had already been discussed before the department of first instance. With these circumstances in mind, the board held that the appellant's request that the technical expert be heard had been submitted sufficiently in advance of the oral proceedings.

In T. 634/16 there was still just over a month to go before the date of the oral proceedings when the appellant (patent proprietor) requested permission for an accompanying person to make oral submissions, but the festive holiday period fell in the time in between. The respondents (opponents) argued chiefly that they had been unable in the short time available between receiving the letter with the appellant's request and the start of that general holiday period and then until the date of the oral proceedings to find technical experts who would have been able to help their representatives to refute the arguments made in any such oral submissions. The board considered it plausible that this had made it at least very difficult to prepare any defence against the oral submissions, it being unknown what technical matters they would cover as those announced by the appellant in its letter had been vague. Since there were no exceptional circumstances that might have served as justification, the board therefore refused to allow the oral submissions.

The board in T. 89/04 refused a request that an accompanying person be permitted to make oral submissions as it had been filed only three days before the opposition proceedings.

5.2.7 Exceptional circumstances

Save in exceptional circumstances, a request made shortly before or at the oral proceedings should be refused unless each opposing party has agreed to the making of the oral submissions requested.

In T 520/07 the board did not share the respondent (patentee's view) that the appellant could not be surprised by its request, the same accompanying person having already made submissions in oral proceedings before the opposition division. In all procedural matters, appeal proceedings were completely separate from first-instance ones, so requests made in the latter had no effect for the former.

5.2.8 Professional representative's responsibility

The EPO must be satisfied that an accompanying person's oral submissions were made under the continuing responsibility and control of the professional representative.

In T 1027/13, on the day of the first instance oral proceedings, the chairman had categorically forbidden Mr H (accompanying person) to address the opposition division and to communicate with Mr W (representative), apparently under the impression that Mr H had not only been present to make submissions regarding some specific legal or technical points, but had actually been **intending to present the complete case** in place of the **newly appointed representative** Mr W. The patent proprietor and the opposition division had concluded that Mr H was trying to act as the representative of the opponent, thereby circumventing the provisions of Art. 133 and 134 EPC. The patentee also contested that there was proper control and supervision by Mr W since he had declared that he was not prepared to defend the case in oral proceedings. The board stated that as a consequence of this conduct of the oral proceedings, the representative of the opponent appeared to have been totally deprived of any support he was expecting to get from the announced accompanying person Mr H, i.e. a person very familiar with all aspects of the case from its very beginning. The categorical refusal in effect had been keeping the opponent from taking position in an "efficient and effective manner" on the contentious issues of the case, which would also have included the obviously very important supporting oral contributions by Mr H.

In case T 1458/11 appellant 2 (patent proprietor) was represented by a professional representative, Mr Ch, accompanied by Mr H, a **trainee in the law firm** of Mr Ch. Mr H had not been announced prior to the oral proceedings before the opposition division. Appellant 2 requested that Mr H be allowed to speak "on selected issues during the oral proceedings under his (Mr Ch's) supervision and responsibility". Appellant 1 (opponent) agreed to this with the proviso that Mr H would "not make the complete case". The opposition division allowed this. After the impugned decision was pronounced, appellant 1 submitted that, according to its observations, Mr H had spoken "for more than 50% of the time" and that this was not what had been agreed at the beginning of the oral proceedings. It was incumbent on appellant 1 to inform the opposition division of any alleged negligence of the opposition division's duty as soon as it became aware of it. This immediate reaction was required since a party to the proceedings must take an active part and must on its

own initiative submit in due time whatever will support its position (cf. **R.2/08**). Furthermore, nothing indicated that appellant 1 was taken by surprise or that it was not prepared, or at least could not have been prepared, for the oral submissions made by the accompanying person.

5.2.9 Procedural objection under R. 106 EPC

In **R.3/08** the question arose whether an accompanying person can validly raise a procedural objection pursuant to **R.106 EPC**. However, in the circumstances this question did not need to be answered since, based on the affidavit of Mr S.L., it was credible that the professional representative himself explicitly supported his procedural objections. Even if, in the absence of further evidence, the exact circumstances of the representative's intervention was not established, the board was prepared to assume in favour of the petitioner that the objections raised in that phase of the oral proceedings met the requirements of **R.106 EPC**.

5.3. Oral submissions by former members of the boards of appeal

In **J.11/94** (OJ 1995, 596) the authorised representative was accompanied during oral proceedings by a former chairman of the Legal Board of Appeal who had retired about a year and a half previously. The professional representative requested permission for the former board member to make submissions in addition to his own arguments. The case referred to the Enlarged Board therefore encompassed the question whether special criteria applied to the exercise of a board's discretion in relation to a request for the making of additional oral submissions by a former board of appeal member.

The Enlarged Board noted in **G.2/94** (OJ 1996, 401) that there was a potential conflict between what might be seen as a right of former board of appeal members to seek subsequent employment on the basis of their special knowledge by making oral submissions during proceedings before the EPO, and the need for proceedings before the EPO to be conducted free from any suspicion of partiality. The existence of such a potential conflict was well recognised in the context of national judicial systems where it was clear that persons accepting appointments as judges were subject to restrictions if they wished to work in private legal practice after having served as judges. The Enlarged Board concluded that the above potential conflict had to be resolved with a view to avoiding any suspicion of partiality during the conduct of proceedings before the EPO. The public interest in the proper conduct of proceedings before the EPO had to prevail over the personal interests of former board of appeal members who wished to make oral submissions on behalf of parties to the proceedings.

It was therefore necessary to place **restrictions** on the admissibility of such oral submissions, at least for a reasonable period of time following termination of a person's appointment as a member of a board of appeal. In the absence of specific legislation, the point in time following termination of his or her appointment after which a former member of the boards of appeal might make oral submissions in proceedings before the board of appeal was **a matter within the judicial discretion** of the boards of appeal. The Enlarged Board found that during either ex parte or inter partes proceedings, a board of appeal